

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #03	CCRB Case #: 201901194	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/22/2019 5:27 PM	Location of Incident: Riverside Church	18 Mo. SOL 3/8/2021	Precinct: 26		
Date/Time CV Reported Wed, 01/30/2019 3:19 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/08/2019 11:45 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Joseph Turdik	00861	963783	026 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Derek Atwood	15279	956400	026 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A . POM Joseph Turdik	Abuse: Police Officer Joseph Turdik did not obtain medical treatment for § 87(2)(b)		A . Unsubstantiated		

Case Summary

On January 30, 2019, § 87(2)(b) filed this complaint over the phone with the Internal Affairs Bureau. It was referred to the CCRB, and received on February 8, 2019, under log number 19-4777.

On January 22, 2019, at approximately 5:27 p.m., § 87(2)(b) got into a physical altercation with another individual, § 87(2)(b) in the vicinity of Riverside Church, in Manhattan. During the altercation, § 87(2)(b) was struck in the head. The police were called, and PO Joseph Turdik and PO Derek Atwood, of the 26th Precinct, responded to the incident. PO Turdik spoke with § 87(2)(b) about the assault. PO Turdik asked § 87(2)(b) if he needed an ambulance, and § 87(2)(b) said that he did, to which PO Turdik allegedly responded that he would not get an ambulance for § 87(2)(b) as there was nothing wrong with him (**Allegation A – Abuse of Authority: Unsubstantiated**). After that the officers left, and completed a report for harassment regarding the incident.

There was no video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joseph Turdik did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) (Board Review 01) said that he had been struck in the head during an assault, and was experiencing dizziness. He was not bleeding, but later went to the hospital and learned that he had a bruise on the side of his face. As he spoke with PO Turdik, he wanted § 87(2)(b) arrested for assaulting him, and PO Turdik said that he would not arrest § 87(2)(b) but offered to call an ambulance for him. When § 87(2)(b) said that he wanted an ambulance, PO Turdik responded that he was not going to call one after all, because he did not think § 87(2)(b) needed one. § 87(2)(b) medical records from when he went to the hospital on his own later § 87(2)(a) PHL § 18(6) (Board Review 02). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) identified one potential witness to this interaction, § 87(2)(b) however, when § 87(2)(b) was called by the CCRB (Board Review 03) he stated that he was not present when § 87(2)(b) was speaking with officers, and was unaware of whether § 87(2)(b) requested medical attention.

PO Turdik (Board Review 04) and PO Atwood (Board Review 05) provided consistent testimony regarding the incident. Both officers stated that § 87(2)(b) complained to them about an altercation with an individual at Riverside Church that involved shoving and hitting, but did not constitute an assault. PO Turdik offered to call § 87(2)(b) an ambulance, and § 87(2)(b) refused the offer. He had no visible injuries. They prepared a report for harassment, and were unaware if § 87(2)(b) ever obtained medical treatment related to the incident.

The complaint report filled out by PO Turdik related to the incident notes that § 87(2)(b) refused medical attention (Board Review 06).

§ 87(2)(g)

§ 87(2)(b)

Therefore, it is recommended that **allegation A** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB case involving § 87(2)(b) (Board Review 07).
- This is the first CCRB case in which PO Turdik has been a subject. He has been a member of service for two years (Board Review 08).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A request for any Notice of Claim related to the incident was sent to the NYC Comptroller's Office on June 6, 2019. There has been no response as of the date of this request (Board Review 10).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date